

23NWCV02348 23NWCV02348

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-08-20

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CR%2C08%2F20%2F2026

Source SHA-256: 74ebb4f2651fc3f10ea9be5ede4c42341a2af5bf6bd7ad51a9beaa35a30ecbc1

Case Number: 23NWCV02348 Hearing Date: August 20, 2026 Dept: R

#14

MOLINA v. REMERO,
ET AL.

CASE NO.: 23NWCV02348

HEARING: Thursday, August
20, 2026, at 9:30 AM

Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION
AUTHORITY's Motion for Payment of Defense Costs under CCP § 1038 is DENIED.

Moving Party to give notice.

Background

On July 28, 2023, Plaintiff GUILLERMINA MOLINA ("Plaintiff")
filed this action against Defendants JUAN CARLOS GAVINA REMERO; LOS ANGELES
COUNTY METROPOLITAN TRANSPORTATION AUTHORITY; and DOES 1 through 50, inclusive

Plaintiff alleges, in pertinent part, "Plaintiff was a
passenger aboard the BUS, traveling on Central Avenue at or near the
intersection of 68th Street, when the BUS driver forcefully pressed the
accelerator to catch a yellow light, then suddenly slammed on the brakes to
avoid colliding into the vehicle making a left turn in front of the bus.

Defendant JUAN CARLOS GAVINA REMERO made a left turn in front of the BUS and
caused both vehicles to collide with each other. The collision caused Plaintiff

GUILLERMINA MOLINA to jolt forward, then backward, and strike the left side of her face on the metal border between the seats. Plaintiff sustained injuries to her person including but not limited to her face, neck, back, head, right arm, and right shoulder.” (Complaint ¶ 3.)

Plaintiff's Complaint asserts the following causes of action:

(1) Negligence

(2) Negligence

(3) Negligent

Hiring, Training, Supervision, and Retention and

(4) Common

Carrier - Strict Liability

On October 31, 2023, Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY filed a Cross-Complaint for Indemnity against Defendant JUAN CARLOS GAVINA REMERO. On May 13, 2026, Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY dismissed the Cross-Complaint without prejudice.

On August 11, 2026, the Court DENIED Defendant LOS ANGELES COUNTY METROPOLITAN TRANSPORTATION AUTHORITY (“Defendant”) motion for Summary Judgment.

The Court DENIED Defendant's Motion for Summary Adjudication as to Plaintiff's Negligence and Common Carrier – Strict Liability Causes of Action.

The Court GRANTED Defendant's Motion for Summary Adjudication as to Plaintiff's Negligent Hiring, Training, Supervision, and Retention Cause of Action.

Discussion

CCP § 1038 authorizes the defendants or cross-defendants to recover reasonable costs after prevailing on a dispositive motion (i.e., summary

judgment, directed verdict, nonsuit, judgment before presentation of defense evidence, or other motion in an action for indemnity or contribution). (CCPS 1038(a), (c).)

CCP § 1038(a) provides that: "In any civil proceeding under the Government Claims Act ... the court, upon motion of the defendant, shall, at the time of the granting of any summary judgment determine whether or not the plaintiff brought the proceeding with reasonable cause and in the good faith belief that there was a justifiable controversy under the facts and law which warranted the filing of the complaint. If the court should determine that the proceeding was not brought in good faith and with reasonable cause, an additional issue shall be decided as to the defense costs reasonably and necessarily incurred by the party or parties opposing the proceeding, and the court shall render judgment in favor of that party in the amount of all reasonable and necessary defense costs, in addition to those costs normally awarded to the prevailing party. An award of defense costs under this section shall not be made except on notice contained in a party's papers and an opportunity to be heard." (CCP § 1038(a) (emphasis added).) "'Defense costs,' as used in this section, shall include reasonable attorney's fees, expert witness fees, the expense of services of experts, advisers, and consultants in defense of the proceeding, and where reasonably and necessarily incurred in defending the proceeding" (CCP § 1038(b).)

A motion under CCP

§ 1038 requires the grant of a summary judgment motion or other similar grant pursuant to statute. The Court DENIED Defendant's Motion for Summary Judgment, thus there is no basis to grant a CCP § 1038 motion.

Defendant's Motion
is DENIED.